
Is International Law International?

Anthea Roberts

OXFORD
UNIVERSITY PRESS

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Preface

DOMESTIC LEGAL SYSTEMS differ, yet lawyers often assume that international law is universal. But my experiences as an international lawyer who has studied, taught, and worked in three jurisdictions—Australia, the United Kingdom, and the United States—have made me conscious of national differences in approaches to international law, even among three Western, English-speaking, common law, liberal democratic states. This awareness led me to wonder how different international law might look from the perspective of those who study, teach, or apply it in non-Western, non-English-speaking, noncommon law, and/or nonliberal democratic states.

I was first struck by different national approaches when I began practicing at a US law firm in 2003. One of my first assignments was to write a brief about the Alien Tort Statute (ATS) for the US Supreme Court case *Sosa v. Alvarez-Machain*.¹ I was excited because I had heard that the ATS involved enforcement by US courts of customary international law, and enforcement is the Achilles heel of international law. I also knew that some US international lawyers were very proud of the ATS, seeing it as “a source of pride, a badge of honor.”²

But there was a catch: I had never read an ATS case. That was absolutely normal for someone, like me, who had initially studied international law in the United Kingdom and Australia in the late 1990s, but was almost unthinkable for a US-trained

¹ *Sosa v. Alvarez-Machain*, 542 U.S. 692 (2004).

² Anne-Marie Burley, *The Alien Tort Statute and the Judiciary Act of 1789: A Badge of Honor*, 83 AM. J. INT'L L. 461, 464 (1989).

international lawyer at that time. Nonetheless, I felt little concern because it was all international law, after all.

As I read these cases, however, I felt some shock. We seemed to be using the same words and concepts, yet the analysis and conclusions felt unfamiliar. To my eye, the cases adopted a very strange approach to determining the existence of customary international law. They largely cited other US cases for propositions of international law, many of which seemed dubious to me. They involved a curious mix of international and domestic law on points like corporate liability and aiding and abetting liability. And basic steps—most notably determining whether international law permits domestic court jurisdiction over civil claims by foreigners, against foreigners, for acts occurring on foreign soil—were largely missing from the analysis.

What was I to say about these cases? “What did you think?” asked one of my colleagues. “This is like no international law I have ever seen,” I reported back. My colleague looked shocked. “I thought you *knew* international law,” he stammered. “I do,” I replied, feeling strangely offended. “The problem isn’t that I don’t know international law. I *know* international law. *This isn’t it!*”

What looked to my colleague (an American) like international law looked to me (a foreigner) like American law. To my eyes, the ATS was to international law what Tex-Mex was to Mexican cuisine: you could see the foreign influence, yet it seemed utterly Americanized. Was it international law, American law, or some hybrid of the two?

I had a similar dislocating experience when I arrived at Harvard Law School in 2011 to teach international law to a first-year class. Instead of the materials I had used at the London School of Economics, I prescribed a US cases and materials book called *International Law*. I had assumed that the content would be roughly the same, yet it was strikingly different in parts and seemed to have a strong focus on international law as interpreted and applied by US actors.

Even though I was the same teacher and was ostensibly teaching the same subject, my experience in that Harvard classroom felt radically different. Perhaps it was the greater domestic focus of the book or perhaps it just felt like a greater domestic focus because it was a different domestic setting. Perhaps it was that I was used to teaching international law to a broad mix of nationalities, whereas here I was teaching a class that was predominantly made up of a single nationality. Perhaps it was because that single nationality was American and the United States was the hegemon. Perhaps it was the students’ generally skeptical and realist approach compared with the reverent and idealistic approach often exhibited by my students in the United Kingdom.

One difference I found striking was that my American students often assessed international law questions from a US perspective. Would this rule be good or bad for the United States? Should or would the United States comply? I could not recall my students in the United Kingdom adopting an analogous UK perspective. Nor was I aware of approaching international law from the perspective of what was in it for my home state of Australia or my adopted state of the United Kingdom. Did the difference evidence American exceptionalism? Did I approach international law from a denationalized perspective of the international community? Or did I implicitly approach it from the position of a nonhegemonic Western state, and which state that was did not really matter?

Whatever the reasons, I found myself having a comparative international law experience in that classroom where I did not realize how national the international law we sometimes teach is (in both materials and assumptions) until I found myself in another national setting. Dislocation was the key. By *dislocating* myself from my normal environment, I was able to experience international law from a different *location*. In doing so, I became conscious not only of the *located* way in which my students were approaching international law, but also the (differently) *located* way in which I had been approaching my field.

This sort of dislocation occurred again when I was appointed in 2012 as a non-American reporter for the *Restatement (Fourth) of the Foreign Relations Law of the United States*. I was tasked with working on the jurisdiction section, but there was a stumbling block. The *Restatement (Third) of the Foreign Relations Law of the United States* stated that international law recognized a three-part approach to jurisdiction, divided among jurisdiction to prescribe, jurisdiction to adjudicate, and jurisdiction to enforce. My US colleagues agreed. But in the United Kingdom and Australia I had learned that international law recognized a two-part approach, divided between jurisdiction to prescribe and jurisdiction to enforce. Which was the case?

To my eyes, much of what they called jurisdiction to adjudicate could simply be described as US constitutional law, not international law at all. What made things even more confusing was that my understanding of jurisdiction to prescribe and to enforce in my two-part scheme seemed to differ from my coreporters' understandings of the same terms in their three-part scheme. The textbooks and casebooks from our respective countries typically supported our respective understandings. When we looked at textbooks from other countries, including France, Germany, Russia, and China, we found some following the UK approach and others following the US approach.

This experience led to fundamental questions about the *Restatement* project. Were we trying to do a restatement of international law or of US approaches to international law? Who was to say what "international law" was? And what was the difference between international law and foreign relations law? Why did foreign relations law seem to be a big subject—one that people teach, write about, and produce casebooks on—in the United States, yet I could not think of anyone teaching or writing a textbook about this subject in the United Kingdom? Did it have something to do with the structure of government? Was it historical happenstance? Did it relate to the differential power of these states? Or was something else at play?

These questions made me recall a conversation in 2009 with a noted US international law/foreign relations law scholar. He proposed creating a Comparative Foreign Relations course with him teaching the US approach, me teaching the UK approach, and someone else teaching the German approach. That sounded fascinating, I said, but what exactly was foreign relations law and how did it differ from international law? Neither I nor anyone I knew in the United Kingdom taught a course called Foreign Relations Law, I explained. I vaguely recalled that F. A. Mann had written a book called *Foreign Affairs in the English Courts* in the 1980s, but I was not aware of any more recent treatment at that time.³

³ For discussion of more recent developments in this area since 2009, see Chapter 5.I.B.

Defining foreign relations law and its relationship to international law is not an easy task, it turns out. A simple attempt at defining it led to dozens of e-mails and considerable disagreement among the *Restatement's* reporters. We called a temporary truce after reaching exhaustion rather than agreement. In broad terms, it had something to do with how international law was interpreted and applied by the United States. It seemed particularly focused on how international law came into the US legal system and how authority with respect to these issues was allocated among the different arms of government. It also included issues such as when US courts could hear cases with foreign elements and recognize and enforce foreign judgments.

It was not as though there were no laws or cases on these issues in the United Kingdom; in fact, there were lots of them. Some of them, such as how international law comes into the UK system, formed a minor part of our international law courses. Others, such as the powers of different arms of government, might perhaps have come up in constitutional law classes, though I was not sure. Still others, such as jurisdiction to hear cases with foreign elements and recognition and enforcement of judgments came up in either public international law (when dealing with public and criminal laws) or private international law (when dealing with torts and contracts and the like). We just did not conceptualize the foreign relations law of the United Kingdom as a separate field. I wondered why this was so and how this difference might reflect or shape differences in the way international law was understood in different states.

When I wondered out loud whether the United Kingdom should develop a field called foreign relations law, a left-leaning US international lawyer quickly intervened to warn me against working on such a project. The turn from international law to foreign relations law was an inherently conservative move, he cautioned me; look at how it had developed in the United States. But was that true in the United States? I could think of liberal and conservative foreign relations lawyers, but did the liberals have a heavier load to lift? And, even if true for the United States, would that always be true of a movement to foreign relations law because it encouraged you to look at international law from a particular national perspective instead of from the perspective of the international community? Or did it depend on the nation in question?

I am grateful for having had these moments of dislocation because they helped open me to the possibility of comparative international law. Public international law is commonly studied as one subject in a first law degree alongside various topics of domestic law, like torts and property. Viewed in this way, whatever does not look domestic is assumed to be international. Usually, only when placed in an international context, such as competing in the international round of the Jessup Moot Court Competition or working for an international organization, or in another national context, such as studying or working in a foreign state, is one likely to become aware of national differences in approaches to international law. Instead of looking vertically (domestic to international), one is forced to look horizontally (domestic to foreign) and to consider how a foreign system might approach international law differently (foreign to international).

The key difference here is the movement from a *vertical* approach that considers domestic law and international law to a *triangular* approach that considers domestic law, international law, and foreign law. Just because something is not entirely domestic does

not make it international since it might be a hybrid of the two that looks international to domestic audiences and domestic to international audiences. And one domestic approach to international law is not necessarily the same as another: international law traditions may be nationalized, so to speak. Looking sideways at foreign approaches to international law helps to clarify both points and to encourage us to reflect on how "international" our understanding of international law really is.

My first reaction to these experiences was to conclude that these Americans that I had encountered did not know international law: "You say that this is international law, but it is US foreign relations law. Or American international law. It is not really international law." This approach, it turns out, is not the best way to win friends and influence people.

My second reaction was more self-reflective. If the Americans thought something was international law but I did not, were they right or was I? Did I know international law, as I had previously thought? Or did I know British or Australian concepts of international law, without having realized the subconscious national lenses and filters that I had adopted in the process of learning and teaching it?

My third reaction was to wonder if none of us really knew international law because there was no "international law" to know. Our field is premised on coexistence and cooperation, but maybe we often simply talk past each other. This notion led to a crisis of confidence: just what had I been teaching all these years?

I am not alone in experiencing discomfort and disorientation upon coming face-to-face with international law pluralism. According to David Kennedy: "The professional experience of legal pluralism has two dimensions. First, encounter—encountering the other. Second, loss of confidence, destabilization. In the presence of legal pluralism, one is defeased of professional knowledge, certainty. Perhaps, one must acknowledge, the legal situation is, in fact, some *other way*."⁴ My own roller-coaster ride clearly follows this pattern: dislocation, shock, and then doubt.

And so, with these experiences, my comparative international law journey had begun. But how could I start to capture what I had observed, moving beyond the level of anecdote to a point where I could find and analyze broader data to confirm, contradict, or nuance my impressions and convey them to people who had not shared the same experiences? How could I gain insights into other national approaches to international law from states with which I was unfamiliar? And what could a comparative international law approach tell international lawyers about how international law is conceptualized as a field and how universal or otherwise it might be?

These questions led me to consider the role that the globalization of law, legal education, and legal publishing might be playing in the construction of international law as a transnational field. Some fields seem inevitably international. For instance, we do not talk about German physics or American biology. Others are clearly nationally situated, like French literature and Chinese philosophy. But where does law fit in this spectrum?

⁴ David Kennedy, *One, Two, Three, Many Legal Orders: Legal Pluralism and the Cosmopolitan Dream*, 3 N.Y.U. REV. L. & SOC. CHANGE 641, 642 (2007).

"Lawyers are professionally parochial. Comparative law is our effort to be cosmopolitan."⁵ The same could be said of international law. Yet how successfully do we transcend our national boundaries? Do some national approaches end up having significantly more influence outside their borders than others? And are these patterns likely to shift in the next generation?

By focusing on the incoming influences, and outgoing spheres of influence, of international law academics in the five permanent members of the UN Security Council, and the way academics from these states construct and pass on understandings of the field in their textbooks, this book provides a window into the sociology of international law as a transnational legal field. By encouraging international lawyers to adopt a comparative international law approach, it aims at making international lawyers more aware of how their own understandings of and approaches to the field are shaped, as well as how these influences might be similar to or different from those of international lawyers from other states, regions, or geopolitical groupings. In trying to understand how others view international law, one is often able to see the field in a different light and to view one's biases and blind spots in sharper relief.⁶ This process of trying to see international law through the eyes of others represents an important step toward encouraging greater understanding of diverse perspectives and facilitating enhanced communication and cooperation among those coming from different, and sometimes unlike-minded, states.

⁵ JOHN HENRY MERRYMAN, *THE LONELINESS OF THE COMPARATIVE LAWYER: AND OTHER ESSAYS IN FOREIGN AND COMPARATIVE LAW* 10 (1999).

⁶ Anne van Aaken, *Emerging from our Frames and Narratives: Understanding the World Through Altered Eyes*, *EJIL: TALK!* (Dec. 13, 2014).

of other states because the United States defends the “global commons.” One consequence is that Americans may refrain from reflecting on how the U.S. naval presence appears in the eyes of the PRC.²⁵⁷

From China’s perspective, the US naval presence in the western Pacific is a threat to Chinese national security and an example of Western hegemony. Claims to the importance of ensuring freedom of navigation are likely to be perceived by Chinese readers as “self-serving justifications for the sustenance of American primacy.”²⁵⁸

An important element in finding out if agreement can be reached, or a compromise effected, is for each side to put itself in the shoes of the other so that it can appreciate its particular perspective and interests. Thus, as Dutton explained, one of the key advantages of the workshop was that it gave the lawyers from each side an extraordinary level of insight into the perspective of the other and, in seeing the “nature and source of friction more clearly—even military activities in the EEZ through the lenses of the other’s eyes—perhaps wise minds on both sides will be able to divine cooperative paths to peace and security” in the Asia-Pacific region going forward.²⁵⁹ Taking this sort of a comparative approach not only enhances knowledge of the other, but also enables international lawyers to look more critically at their state’s own position and to become more aware of how some arguments and actions might be viewed differently by those with other perspectives.²⁶⁰ It is to this issue—the importance of seeing international law and international issues through the eyes of others—to which the conclusion now turns.

²⁵⁷ Wachman, *supra* note 251, at 114.

²⁵⁸ *Id.*

²⁵⁹ DUTTON, *supra* note 236, at 1, 3, 12–13.

²⁶⁰ See Max Fisher, *Obama, Acknowledging U.S. Misdeeds Abroad, Quietly Reframes American Power*, N.Y. TIMES, Sept. 7, 2016 (discussing the way that US foreign policy is viewed very differently by Americans and non-Americans, including US allies).

Conclusion

I BEGAN THIS project by seeking to change the question from the commonly asked, Is international law law?, to the less frequently analyzed, Is international law international? At times, however, this project made me wonder whether the two questions are inextricably linked. If international lawyers in diverse places view and deal with international law differently, and these differences subsist either consciously or unconsciously, does that mean that international law is not law? If one lays bare some of the patterns of dominance within the field and analyzes how shifting geopolitical power might disrupt these dynamics, how can one separate international law from international politics? I do not have good answers to these questions.

What I do have is a different understanding of my field and my relationship to it. International law aspires to be a universal field, but it is also, and inevitably, a deeply human product. No international lawyer can understand all aspects of the field from all viewpoints, myself included. We are all shaped by our experiences, interests, and vantage points. The best that international lawyers can do is to attempt to become conscious of some of the frames that shape their understandings of and approaches to the field and be aware of how these might be similar to and different from those of others. Consciously assuming a comparative international law approach may help international lawyers to look at their field through different eyes and from different perspectives, enabling them to understand others more fully and to critique themselves and their own state more perceptively.¹

¹ Anne van Aaken, *Emerging from Our Frames and Narratives: Understanding the World Through Altered Eyes*, EJIL: TALK! (Dec. 23, 2014).

This study has examined some of the problems facing the world today through the lens of international law and those who practice, study, and teach it. It is unclear where the global condition is heading and many questions remain. Will the United States under President Trump seek to undermine the international liberal world order that it helped to construct? Will the European Union and the United Kingdom survive rising nationalist sentiments and economic strains without changing their political form? Will China step up to play a more significant role on the international stage, particularly in relation to areas like international economic law and international environmental law? How will relations between Russia and the United States and Europe develop, or between Western states and Iran and North Korea? What role will other emerging powers play in this story, such as Brazil and India? What will the future hold for the Middle East? And will potential existential threats, like climate change and nuclear proliferation, be managed effectively?

No one can be certain of the answers to these questions. What is clear, however, is that some of the patterns of difference and dominance that have defined the international legal field to date are experiencing significant disruptions. If international law is no longer simply decided by the West and exported to the rest, its content and structure will change, making it more incumbent on international lawyers to understand the approaches and interests of a broader set of unlike-minded states. To do so, international lawyers will need to expand their networks and sources to encompass a more diverse range of perspectives and materials than has often taken place within the divisible college to date.

Yet domestic sentiment in many states is moving in the opposite direction. In a growing number of Western states, populism has challenged globalism and nationalist and anti-immigration rhetoric is on the rise. Part of the explanation lies in economics. Globalization has raised prosperity throughout much of the world, but the poor and working classes in the United States and some other Western states have been, or have felt, left behind in comparative terms.² Some politicians blame other countries, like President Trump who claimed that China and Mexico had been “raping” and “killing” the United States with unfair trade deals.³ Others blame the top one percent for disproportionately reaping the rewards of an increasingly globalized economy.⁴

Psychological and cultural factors also play a role in the antiglobalization revolt. Some commentators point to the appeal of authoritarianism to help explain Trump’s rise.⁵ Individuals with authoritarian tendencies tend to feel unsettled by social change and to draw firm lines between their ingroup (to whom they express loyalty) and outsiders (whom they view as a threat). When events occur that trigger their fears, like the rapid

² *Shooting an Elephant*, *ECONOMIST*, Sept. 17, 2016; Luke Kawa, *Get Ready to See This Globalization “Elephant Chart” Over and Over Again*, *BLOOMBERG MARKETS*, June 27, 2016; Andrew Walker, *Globalisation: Where on the Elephant Are You?*, *BBC NEWS*, Oct. 5, 2016.

³ Dan Primack, *Is Donald Trump Right That Mexico Is “Killing Us” on Trade?*, *FORTUNE*, Aug. 10, 2015; Jeremy Diamond, *Trump: “We Can’t Continue to Allow China to Rape Our Country,”* *CNN*, May 2, 2016.

⁴ Bernie Sanders, *Democrats Need to Wake Up*, *N.Y. TIMES*, June 28, 2016.

⁵ Jonathan Haidt, *When and Why Nationalism Beats Globalism*, *AM. INT.*, July 10, 2016.

social and economic changes that accompanied the rise of high globalization in the 1990s and 2000s, they are likely to react by electing strongman leaders who promise to be tough on immigration and national security. Other commentators point to cultural factors in explaining the pushback, particularly as the votes in favor of Trump and Brexit were disproportionately cast by older, less-educated, white, male voters who likely felt that the changes that had occurred in the last generation had challenged and degraded their economic and social status relative to other groups.⁶

The resulting struggle between “globalists” and “nationalists” has led social psychologist Jonathan Haidt to suggest that the thorniest question for states after 2016 may be:

How do we reap the gains of global cooperation in trade, culture, education, human rights, and environmental protection while respecting—rather than diluting or crushing—the world’s many local, national, and other “parochial” identities, each with its own traditions and moral order? In what kind of world can globalists and nationalists live together in peace?⁷

International lawyers need to be sensitive to these dynamics. By their nature, international lawyers are part of two communities: a transnational community and a national one. If international lawyers spend too much time connecting with their transnational colleagues, they risk becoming disconnected from the concerns and perspectives of their fellow citizens, including those who are apathetic about or hostile to international law and globalization. But if they spend too much time focusing on their national context and catering to parochial sentiments, they risk forgoing the benefits of connecting with citizens of other states and seeing the world and international law through others’ eyes.

International lawyers are not “abstract universals” but, instead, are both “universal and particular at the same time, speaking a shared language but doing that from their own, localizable standpoint.”⁸ Rather than seek to find some Archimedian “international” midpoint, international lawyers might imagine their role as being to pass back and forth between the national and the transnational to facilitate interaction and understanding between the two.⁹ What the year 2016 has demonstrated is that stark divisions operate not only between states but also within states, and it behooves international lawyers to be conscious of both. If international lawyers operate in silos, either domestically or transnationally, they risk failing to connect with, and understand the perspectives of, those coming from diverse backgrounds and holding diverse perspectives.

In seeking to fathom and move between the national and the transnational, international lawyers must also be mindful of the way that states’ identities and interests change over time. If there are two macro stories that can be told about changes in the

⁶ Ronald F. Inglehart and Pippa Norris, *Trump, Brexit, and the Rise of Populism: Economic Have-Nots and Cultural Backlash*, Faculty Research Working Paper Series, Harvard Kennedy School, August 2016, https://papers.ssrn.com/sol3/papers.cfm?abstract_id=2818659.

⁷ *Id.*

⁸ Martti Koskeniemi, *The Case for Comparative International Law*, 2009 FINNISH Y.B. INT’L L. 1, 4.

⁹ *Id.*

international system in the last few decades, they would be stories of rising economic inequality within states and rising economic equality among states.¹⁰ Both stories are likely to lead to changes in domestic political preferences and shifts in geopolitical power. In terms of rising domestic inequality, the United States has long heralded itself as a bastion of democracy and as a place of strong social mobility in line with the American dream. However, growing economic inequality within the United States has resulted in a hollowing out of its middle class and lower levels of social mobility than in Europe.¹¹ Concerns are also increasingly expressed that the United States is more democratic in form than in substance given that growing role of money in US politics and the vastly greater responsiveness of political representatives to the interests of wealthy voters compared to lower and middle class ones.¹²

In terms of rising equality among states, China has undergone enormous transitions in the last few centuries and decades, from its time as the most powerful state in its region during the Middle Kingdom period, to its fall and subordination through its century of humiliation, to its return to great-power status following its entry into the globalized economy. Under the leadership of President Xi Jinping, China appears to be both stepping up its engagement on the international stage, at least with respect to some issues like international economic law, international environmental law, and peacekeeping, and becoming more repressive at home.¹³ The United States has enjoyed unprecedented power since World War II and has long advocated a Western, liberal conception of the world order but is now having to contend with a loss of heft and prestige internationally and the rise of nonliberal, more nationalist sentiments domestically.¹⁴

As the power balance between these states changes, and as their internal identities shift, international lawyers may find that the visions of the law they articulate will come closer together in some respects (for example, on the significance of state sovereignty and on the diminished importance of promoting liberalism abroad) and veer further apart in others (for example, on the benefits of international trade and how best to respond to climate change).¹⁵ We have already seen in some fields, like the investment treaty sphere, that the interests of the United States (formerly, primarily a capital exporter) and China (formerly, primarily a capital importer) shifted considerably over time as their identities changed to become dual capital-importers and capital-exporters. As a result, the investment treaty policies of these two states have moved markedly closer in the 2000s. One might expect similar developments with respect to other issues, such as extraterritorial jurisdiction and state sovereignty, when the realization by rising and falling great powers that they have significant interests on both sides of an issue may temper their tendency to embrace extreme positions.

¹⁰ BRANKO MILANOVIC, *GLOBAL INEQUALITY: A NEW APPROACH FOR THE AGE OF GLOBALIZATION* (2016).

¹¹ James Surowiecki, *The Mobility Myth*, NEW YORKER, Mar. 3, 2016.

¹² Martin Gilens & Benjamin I. Page, *Testing Theories of American Politics: Elites, Interest Groups, and Average Citizens*, 12 PERSP. ON POL. 564 (2014).

¹³ James Fallows, *China's Great Leap Backwards*, ATLANTIC, Dec. 2016.

¹⁴ Matthew Keating, *The Fall of Liberalism?*, HARV. POL. REV., Dec. 31, 2016.

¹⁵ Stephen L. Carter, *Trump and the Fall of Liberalism*, BLOOMBERG VIEW, Nov. 11, 2016; Roger Cohen, *The Death of Liberalism*, N.Y. TIMES, Apr. 14, 2016; Stephen M. Walt, *The Collapse of the Liberal World Order*, FOREIGN POL'Y, June 26, 2016.

As states' identities, interests and relative power change, so too will international law. International law is unlikely ever to be fully "international." For the foreseeable future, it will be caught between the ideal of Esperanto and the reality of both multilingualism and English as the lingua franca. My hope is that, by taking a comparative international law approach, international lawyers will become more humble, open, and reflexive in their engagement with international law and more conscious of the field's contingency and capacity to change. Comparativism challenges international lawyers to see the world through the eyes of others instead of just accepting their own self-reinforcing version of the truth. It also encourages international lawyers to build bridges between different communities through civil and respectful dialogue and exchange—something that is crucial in this age of growing political polarization and increasingly hostile political debate. If 2016 has taught international lawyers any lessons, it is the importance of recognizing and seeking to understand the perspectives and experiences of those coming from diverse backgrounds. One might not always like what those in other communities have to say and one may view their values as a threat to one's own. But failing to listen and engage is dangerous in its own right and may lead to a stronger backlash in the longer term. This lesson is an important one to employ both within, and among, different states.